

***HEARING ON MOTION IN RE: DISMISS CCP 430.10 AND HOLD PLAINTIFF IN CIVIL CONTEMPT
FILED BY: CHANDLER, JOHN B.**

TENTATIVE RULING:

Although neither side has drawn attention to the point, the Court observes from the judicially noticeable materials provided that Kauffman's 2010 bankruptcy was a no-assets discharge. The Court accordingly **continues** this motion to June 11, 2026, at 9:00 a.m. On or before May 29, each side should file a short supplemental brief addressing the potential relevance of *In re Beezley*, 994 F.2d 1433 (9th Cir. 1993).

**13. 9:00 AM CASE NUMBER: C25-01159
CASE NAME: ANGELLA JACKSON VS. OAKLEY UNION ELEMENTARY SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: OAKLEY UNION ELEMENTARY SCHOOL DISTRICT
*TENTATIVE RULING:***

Before the Court is Defendant Oakley Union Elementary School District's Demurrer to Plaintiff's First Amended Complaint.

Defendant's Demurrer is **sustained with leave to amend** for the reasons set forth below.

Background and Factual Allegations

Plaintiff filed her initial complaint on April 25, 2025, alleging a single cause of action for breach of contract against Defendant Oakley Union Elementary School District. A stipulation to allow the filing of a First Amended Complaint (FAC) was filed on November 24, 2025. The operative FAC was filed on December 11, 2025. The District filed its demurrer to the FAC on January 21, 2026.

The FAC includes the 2-page Form Complaint – Contract (PLD-C-001), civil case cover sheet, a Declaration of Angella Jackson which purports to authenticate and attach nine exhibits. As for the causes of action alleged, the Form Complaint states:

8. The following causes of action are attached and the statements above apply to each (each complaint must have one or more causes of action attached):
- ☐ Breach of Contract
 - ☐ Common Counts
 - ☒ Other (specify): *Negligence, Civil Rights Violations; Emotional Distress; Educational Harm*
9. ☒ Other allegations: *See attached complaint narrative and continuation pages.*

While the above section notes that the 'causes of action' are attached, and the Form Complaint makes clear that each complaint "must have one or more causes of action attached," there are no 'causes of action' forms attached to the FAC. Nor is there a statement or other document attached which sets forth the elements and/or facts supporting each of the above identified 'Other' causes of action purportedly asserted by the FAC.

Upon reviewing the documents attached to the FAC it appears that the general gist of Plaintiff's complaint relates to claims that her son was bullied while attending a school within the District in

2022, and that the District failed to properly address the problem.

Standard for Demurrer

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Defendant raises several different arguments as to why its demurrer should be sustained. The Court will address them in the order presented. Plaintiff has filed only a cursory, conclusory, one-page opposition brief that does not seriously address any of these arguments. In short, the Court concludes that all of defendant’s arguments are well-taken as to the existing FAC. They present more nuanced considerations, however, as to potential leave to amend.

Government Claim Act

Defendant argues that Plaintiff’s FAC fails as a matter of law because there are no allegations that Plaintiff complied with the Government Claim Act before filing suit.

“In California the tort liability of a public entity is wholly statutory.” (*Tolan v. State of California ex rel. Dept. of Transp.* (1979) 100 Cal.App.3d 980, 983.) “Government Code section 815 restores sovereign immunity in this state except as provided in the Tort Claims Act or other statutes.” (*Ibid.*) “Since the duty of a government agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

The Government Claims Act provides, “as a general rule, that no suit for money or damages may be maintained against a public entity unless a timely written claim has first been presented to it.” (*N.G. v. County of San Diego* (2020) 59 Cal.App.5th 63, 72.) “A claim for ‘injury to person’ must be presented ‘not later than six months after the accrual of the cause of action.’” (*Ibid.* quoting Gov’t Code § 911.2(a).) A claim related to any other cause of action must be presented “not later than one year after the accrual of the cause of action.” (*Ibid.*) “Compliance with the claims statutes is mandatory [citation]; and failure to file a claim is fatal to the cause of action. [citation].” (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454.)

“[F]ailure to allege facts demonstrating or excusing compliance with the requirement subjects a complaint to general demurrer for failure to state a cause of action.” (*State v. Superior Court* (2004) 32 Cal.4th 1234, 1241.)

The FAC alleges no facts indicating that Plaintiff made any attempt to file a claim, nor does it include any facts demonstrating that Plaintiff is excused from filing a claim. It appears from the documents attached to the FAC that all the bullying actions which underlie the FAC occurred in March and/or April 2022. Accordingly, Plaintiff would have needed to file her claim by September or October 2022 for any alleged ‘injury to person’ and by April 2023 for any other claims. (Gov’t Code § 911.2(a).)

The documents indicate the Plaintiff submitted a complaint to the NAACP in May 2022 and filed a complaint against the District with the Department of Education in August 2022. There are no allegations or documents, however, that indicate that Plaintiff filed a Government Claim with the District.

In Plaintiff’s opposition, she asserts that federal civil rights claims are not barred by the Government Claim Act. It is true that federal civil rights claims are not subject to the Government Claim Act. (See e.g. *Gatto v. County of Sonoma* (2002) 98 Cal.App.4th 744, 764-65; *Williams v. Horvath* (1976) 16 Cal.3d 834, 842.)

The FAC, however, does not specify that Plaintiff is asserting any federal civil rights causes of action. The FAC merely states: “Civil Rights Violations.” It does not indicate whether those claims are state civil rights violations or federal. It also fails to identify what particular federal claims she is assertedly relying on. Some federal-law claims are still subject to a claims-presentation requirement, while others are not. Without knowing what federal claims plaintiff is seeking to present, the Court cannot determine whether any of her claims would be exempt from a claims presentation requirement.

To the extent Plaintiff does, or may be able to, assert federal civil rights violations, Defendant’s arguments relating to the failure to allege compliance with the Government Claim Act do not apply. If Plaintiff is going to rely on federal law to excuse her failure to file a timely government claim, however, she must identify what federal claim or claims in particular she is alleging, and must limit her claims to those that would not be subject to a claims-presentation requirement.

Statute of Limitations

To the extent the Plaintiff is alleging state law claims on her own behalf, they are governed by a two-year statute of limitations. (Code Civ. Proc. §§ 351.5; *So v. Shin* (2013) 212 Cal.App.4th 652, 662.) Accordingly, even if a government claim were submitted, the claims are barred by the applicable statute of limitations. As discussed below, her equitable tolling assertion is unavailing.

If Plaintiff is attempting to assert claims on behalf of her son, it is worth noting that the running of any statute of limitations is potentially tolled while he is a minor. (Code Civ. Proc. § 352(a)). Kedemoni’s status as a minor does not, however, extend the time for filing a notice of claim against a government entity, so his state law claims would still be barred. (Code Civ. Proc. § 352(b)).

As outlined above, it is unclear what, if any, federal claims Plaintiff is asserting. Accordingly, the Court cannot determine whether they would be barred by the applicable statute of limitations. The Court will address any federal statute of limitations arguments if Plaintiff files an amended complaint

specifically identifying the particular federal causes of action.

Equitable Tolling

Equitable tolling “is a narrow remedy that applies to toll statutes of limitations only ‘occasionally and in special situations.’” (*Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710, 724.) It has been held to apply in three situations: (1) when there is already another action pending on a relevant issue; (2) when the plaintiff needed to pursue, and did pursue, an administrative remedy before filing a civil action; and (3) where “technical forfeitures would unjustifiably prevent a trial on the merits.” (*Ibid.*)

While Plaintiff mentions ‘equitable tolling’ in her opposition, there are no specific facts alleged which would support such a theory. “Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.) Plaintiff has failed to allege that the statute of limitations for her state law claims should be equitably tolled.

Failure to Join Indispensable Party

The FAC indicates that the Plaintiff is Angella Jackson. The claims and documents attached to the FAC all appear to relate to actions taken against her son, Kedemoni Jackson, as the basis for the various causes of action. For example, the police report indicates that her son was bullied and that Ms. Jackson believes that the school failed to act properly to protect her son from such actions. Accordingly, the gist of the complaint appears to set forth claims on behalf of Kedemoni Jackson, not Angella Jackson.

While the FAC does not state how old Kedemoni Jackson is now, or was at the time of the events, it appears that he was and still is a minor given he was in the 7th grade at the time. (See Police Report p. 3.) To the extent the claims are properly brought by Kedemoni Jackson, as he is a minor, he must be represented by a guardian ad litem. (Code Civ. Proc. § 372(a).) As Kedemoni Jackson is the plaintiff, the appointment of the guardian ad litem “must be made before the summons is issued....” (Code Civ. Proc. § 373(a).)

There is no indication that Angella Jackson has been appointed guardian ad litem on behalf of Kedemoni Jackson. Even if she were, or if she requests to be appointed his guardian ad litem at this time, Angella Jackson would not be able to represent her son as she is not an attorney. A “guardian ad litem who appears in court and acts as would an attorney on behalf of the ward is practicing law on behalf of the ward,” and is considered to be “practicing law without a license,” if they are not an attorney. (*J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-68.) Thus, if Angella Jackson were appointed as Kedemoni’s guardian ad litem, she would need to obtain counsel to move forward with this matter on his behalf.

Failure to Plead Facts

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins.*

Exchange (2005) 132 Cal.App.4th 1076, 1099 quoting *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 608.)

As noted by Defendant, the FAC fails to allege any facts to support any of the purported causes of action. While there are several documents attached to the FAC, there is no discussion or description of any facts or how they apply to any of the purported causes of action. Merely writing “negligence” or “emotional distress” without any description of facts to support those claims is insufficient to properly state those causes of action. Additionally, as noted above, the FAC indicates that Angella Jackson is the Plaintiff. The claims asserted and documents attached, however, appear to relate to actions taken against her son Kedemoni Jackson. Accordingly, the FAC does not appear to support any claims of Angella Jackson personally.

Leave to Amend

“Our Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) While the pleading at issue is a FAC, this is the first time that the Court has addressed these issues as Plaintiff filed the FAC pursuant to a stipulation between the parties.

Plaintiff has already taken one opportunity to amend her complaint to address its deficiencies, and has not done a very good job of it. Repeated failures to remedy defects may form a basis for denying further leave to amend. At this juncture, however, plaintiff is obtaining the Court’s rulings on these points for the first time, and she should be allowed at least one more opportunity to present viable claims.

For clarity, the Court will summarize the considerations that plaintiff should take into account in deciding whether and how to amend:

1. No leave to amend is allowed as to any state-law claims, whether pleaded on behalf of plaintiff herself or of her son. All such claims are barred by the failure to file a timely government claim, and the Court cannot see how that can be remedied.
2. No leave to amend is allowed as to any claims on behalf of plaintiff herself (as opposed to on behalf of her son), whether state or federal. Any such claims would be barred by limitations, and again the Court cannot see how that can be remedied.
3. Plaintiff may consider filing federal-law claims on behalf of her son, if she can identify such claims that are not subject to California’s claims-presentation requirement.
4. If Plaintiff asserts any claims on behalf of her son, however, she must seek appointment as a guardian ad litem, and must obtain legal counsel.
5. And in any event, in any amended claims, the factual allegations for the claims must be actually set forth in the body of the complaint, rather than being presented only by stapling police reports or other documents to the complaint. Each cause of action must also be

separately presented as a distinct count.

Plaintiff may file and serve a second amended complaint within 30 days. If she does not do so, the Court will take that as an election not to amend and will accordingly dismiss the action.

Conclusion

Defendant's demurrer is **sustained with leave to amend**. It appears possible the Plaintiff may be able to properly allege federal claim(s) that are not barred by the failure to file a government claim and which may not be barred by the applicable statute of limitations given her son's status as a minor.

If Plaintiff contests this tentative ruling to seek leave to amend beyond what has been granted, she should appear at the hearing (Zoom okay) prepared to explain exactly what other amendments she has in mind and why they would be effective and permissible.

14. 9:00 AM CASE NUMBER: C25-02495
CASE NAME: JAMES STROUT VS. JENNIFER HOLDEN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The motion to withdraw is **moot** in light of the subsequent substitution filed.

15. 9:00 AM CASE NUMBER: C25-02505
CASE NAME: TRUDY LOGAN VS. ONPOINT AMERISAFE SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT AMERISAFE SERVICES, LLC
TENTATIVE RULING:

Jason Friedman's application to appear pro hac vice is **granted**.

16. 9:00 AM CASE NUMBER: L24-04469
CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG
***HEARING ON MOTION IN RE: FOR STAY OF ENFORCEMENT JUDGMENT PENDING APPEAL**
FILED BY: CHONG, MICHAEL W
TENTATIVE RULING:

This motion is **moot** in light of defendant's express abandonment of his appeal and the dismissal of the appeal.

17. 9:00 AM CASE NUMBER: MSC21-01164
CASE NAME: KIRK PATRICK ANTHONY JONES, JR. VS. REAL TIME STAFFING SERVICES, LLC
***HEARING ON MOTION IN RE: COMPLIANCE AND DISTRIBUTION STATUS SET BY THE COURTROOM.**
FILED BY:
TENTATIVE RULING: